

1 STATE OF OKLAHOMA

2 2nd Session of the 60th Legislature (2026)

3 COMMITTEE SUBSTITUTE

4 FOR ENGROSSED

5 SENATE BILL NO. 1806

By: Paxton, Nice, and Goodwin
of the Senate

and

Lawson of the House

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9 COMMITTEE SUBSTITUTE

10 An Act relating to foster care; directing the
11 Department of Human Services to implement extension
12 of foster care services; providing that services
13 shall be voluntary; providing that services shall be
14 available to certain individuals; providing
15 requirements for receiving extended services;
16 directing the Director to promulgate rules; amending
17 10 O.S. 2021, Sections 7505-1.1 and 7510-1.5, which
18 relate to children; providing that provisions of
19 section shall not prohibit the Department from
20 sharing adoptive information in certain
21 circumstances; modifying provisions related to
22 payment to parents; providing for codification;
23 providing an effective date; and declaring an
24 emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 1-7-112a of Title 10A, unless
there is created a duplication in numbering, reads as follows:

A. The Department of Human Services shall implement an
extension of foster care services to support individuals

1 transitioning into adulthood who meet the requirements provided by
2 this section. Participation in extended services under this section
3 shall be a voluntary election by the qualifying individual.

4 Services shall be available to any individual in this state who
5 meets the requirements of subsection B of this section and who:

6 1. Was in the custody of the Department at the time of the
7 individual's eighteenth birthday but is less than twenty-one (21)
8 years of age; or

9 2. Achieved legal permanency by guardianship or adoption at
10 sixteen (16) years of age or older but is less than twenty-one (21)
11 years of age and the individual does not receive care from the
12 parent or legal guardian.

13 B. Any individual described in subsection A of this section may
14 receive extended services from the Department under this section if
15 the individual is:

16 1. Completing secondary education or a program leading to an
17 equivalent credential;

18 2. Enrolled in an institution that provides postsecondary or
19 vocational education;

20 3. Participating in a program or activity designed to promote,
21 or remove barriers to, employment;

22 4. Employed for at least eighty (80) hours per month; or

23 5. Incapable of doing any of the activities described in
24 paragraphs 1 through 4 of this subsection due to a medical

1 condition, which incapability is supported by regularly updated
2 information in the case plan of the individual. In such a case, the
3 individual shall be in compliance with a course of treatment as
4 recommended by the Department.

5 C. 1. The Director of Human Services shall promulgate rules to
6 implement the provisions of this section.

7 2. The Department of Human Services shall seek available
8 funding to implement the provisions of this section.

9 SECTION 2. AMENDATORY 10 O.S. 2021, Section 7505-1.1, is
10 amended to read as follows:

11 Section 7505-1.1. A. Unless otherwise ordered by the district
12 court exercising jurisdiction over the adoption proceeding, all
13 hearings held in proceedings pursuant to the Oklahoma Adoption Code
14 shall be confidential and shall be held in closed court without
15 admittance of any person other than interested parties and their
16 counsel.

17 B. All papers, records, and books of proceedings in adoption
18 cases and any papers, records, and books relating to such
19 proceedings:

20 1. Shall be kept as a permanent record of the court and
21 maintained in a separate file by the court clerk; and

22 2. Shall be confidential and shall not be open to inspection or
23 copy except as authorized in Sections 7504-1.2, 7505-3.2, 7505-6.6,
24

1 7508-1.2, and 7508-1.3 of this title or upon order of a court of
2 record for good cause shown.

3 C. Upon application and notice to the person or agency in whose
4 possession the records being sought are held, and for good cause
5 being shown, any court of record may, by written order reciting its
6 findings, permit the necessary information to be released, or may
7 restrict the purposes for which it shall be used. The findings
8 shall include the reasons the information being sought cannot be
9 obtained through the methods authorized by Sections 7504-1.2, 7505-
10 3.2, 7505-6.6, 7508-1.2, and 7508-1.3 of this title.

11 D. The provisions of this section shall not prohibit ~~persons~~:

12 1. Persons employed by the court, the Department of Human
13 Services, a child-placing agency, an attorney participating or
14 assisting in a direct placement adoption or any physician, minister, or
15 or other person or entity assisting or participating in an adoption
16 from providing partial or complete identifying information between a
17 biological parent and prospective adoptive or adoptive parent if a
18 biological parent and a prospective adoptive or adoptive parent
19 mutually agree to share specific identifying information and each
20 gives written, signed notice of their agreement to the court, the
21 Department of Human Services, the child-placing agency, or any
22 attorney participating or assisting in the direct placement adoption
23 pursuant to the Oklahoma Adoption Code; or

1 2. The Department from sharing adoptive information necessary
2 to ensure continuity of care for an adoptee who wishes to
3 participate in extended foster care services under Section 1 of this
4 act or sharing adoptive information necessary to carry out the
5 Department's duties under Section 7510-1.5 of this title.

6 E. Any person in charge of adoption records or having access to
7 adoption records or information who discloses any information,
8 including, but not limited to, all records and reports relevant to
9 the case and any records and reports of examination of the minor's
10 parent or other custodian pertaining to an adoption proceeding,
11 contrary to the provisions of this section, upon conviction thereof,
12 shall be guilty of a misdemeanor.

13 SECTION 3. AMENDATORY 10 O.S. 2021, Section 7510-1.5, is
14 amended to read as follows:

15 Section 7510-1.5. A. 1. When a parent or parents are found
16 and approved for adoption of a child who is determined by the
17 Department of Human Services to be eligible for adoption assistance
18 pursuant to the Oklahoma Adoption Assistance Act, and before the
19 final decree of adoption is entered, there must be a signed written
20 agreement between the prospective adoptive parent or parents and the
21 Department.

22 2. Adoption assistance in individual cases may commence with
23 the adoptive placement or at the time of finalization of the
24 adoption. Adoption assistance may be for special services only, or

1 for monthly money payments, and either for a limited period, or for
2 a long term, or for any combination of the foregoing.

3 Eligibility for and the rate of monthly adoption assistance
4 payments shall be determined by the Department in accordance with
5 rules promulgated by the ~~Commission for~~ Director of Human Services.

6 B. When an otherwise eligible child is determined to have a
7 causative, preexisting condition which was not identified or known
8 prior to the legal finalization of the adoption and which has
9 resulted in a severe medical or psychiatric condition that requires
10 extensive treatment, hospitalization, or institutionalization, an
11 adoption assistance agreement may be approved by the Department
12 after the final decree of adoption has been entered. In the event
13 an adoption assistance agreement is approved that provides for
14 monthly adoption assistance payments, the adoptive parents may also
15 be entitled to receive retroactive adoption assistance payments for
16 a period not to exceed the two (2) months prior to the date the
17 adoption assistance agreement was approved.

18 C. Any child who met the requirements of the provisions of
19 Sections 7510-1.2 and 7510-1.4 of this title, and was determined
20 eligible for Oklahoma adoption assistance with respect to a prior
21 adoption, and is available for adoption because the prior adoption
22 has been dissolved and the parental rights of the adoptive parents
23 have been terminated or because the adoptive parents of the child
24

1 have died, shall be eligible for Oklahoma adoption assistance with
2 respect to any subsequent adoption.

3 D. 1. When adoption assistance benefits are for more than one
4 (1) year, the Department shall send the adoptive parent or parents
5 an Adoption Assistance Annual Review request and assure that the
6 child who has attained the minimum age for compulsory school
7 attendance and is eligible for an adoption assistance payment under
8 Title IV-E of the Social Security Act, 42 U.S.C., Section 670 et
9 seq. is:

- 10 a. enrolled in an institution that provides elementary or
11 secondary education as determined under the law of
12 this state or other jurisdiction in which the
13 institution is located,
- 14 b. instructed in elementary or secondary education by any
15 other means legally authorized,
- 16 c. in an independent study elementary or secondary
17 education program in accordance with the law of this
18 state or other jurisdiction in which the program is
19 located, that is administered by the local school or
20 school district, or
- 21 d. incapable of attending school on a full-time basis due
22 to a documented medical condition supported by regular
23 updates.

1 2. The adoptive parent or parents shall at all times keep the
2 Department informed of circumstances including, but not limited to,
3 whether the adoptive parent or parents continue to be legally
4 responsible for support of the child which would make them
5 ineligible for such assistance payments or eligible for assistance
6 payments in a different amount.

7 3. The Department is authorized and directed to make a review
8 of each adoption assistance agreement annually to assure that the
9 parents are fulfilling their obligations under the agreement.

10 4. No payment may be made to any parents with respect to any
11 child who has attained the age of eighteen (18) years, except:

12 a. with respect to an adoption assistance agreement
13 entered into prior to the effective date of this act,
14 a child may continue to receive assistance until the
15 child reaches the age of nineteen (19) years if the
16 child:

17 ~~a.~~

18 (1) continues to attend high school or pursues
19 General ~~Education~~ Educational Development, or

20 ~~b.~~

21 (2) meets the criteria for an adoption assistance
22 difficulty of care rate as determined by the
23 Department, or

1 b. with respect to all other adoption agreements, an
2 individual who attained sixteen (16) years of age
3 prior to the effective date of the adoption assistance
4 agreement may continue to receive assistance until the
5 individual reaches twenty-one (21) years of age if the
6 individual is:

7 (1) completing secondary education or a program
8 leading to an equivalent credential,

9 (2) enrolled in an institution that provides
10 postsecondary or vocational education,

11 (3) participating in a program or activity designed
12 to promote, or remove barriers to, employment,

13 (4) employed for at least eighty (80) hours per
14 month, or

15 (5) incapable of doing any of the activities
16 described in divisions 1 through 4 of this
17 subparagraph due to a medical condition, which
18 incapability is supported by regularly updated
19 information in the case plan of the individual.

20 5. Termination or modification of the adoption assistance
21 agreement may be requested by the adoptive parent or parents at any
22 time.

23 6. No payment may be made to adoptive parents if the Department
24 determines that the parents are no longer legally responsible for

1 the support of the child or that the child is no longer receiving
2 any financial support from such parents.

3 E. A child for whom an adoption assistance agreement has been
4 reached with the Department shall remain eligible and receive
5 adoption assistance benefits regardless of the domicile or residence
6 of the adopting parent or parents at any given time.

7 F. All records regarding adoption assistance shall be
8 confidential and may be disclosed only in accordance with the
9 provisions of the Oklahoma Adoption Code; provided, that nothing in
10 this subsection shall be construed to prohibit the Department from
11 disclosing the amount of adoption assistance paid on behalf of a
12 child to:

13 1. A judge presiding over a matter in which support or custody
14 of the subject child is at issue; or

15 2. The Department's Office of Inspector General, for purposes
16 of investigating allegations of fraud against the State of Oklahoma
17 or its programs.

18 SECTION 4. This act shall become effective July 1, 2026.

19 SECTION 5. It being immediately necessary for the preservation
20 of the public peace, health or safety, an emergency is hereby
21 declared to exist, by reason whereof this act shall take effect and
22 be in full force from and after its passage and approval.

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24 60-2-17434 CMA 04/14/26

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